**$8,490,000**

ILLINOIS **FINANCE AUTHORITY SPORTS FACILITY REVENUE BONDS (NORTH SHORE ICE ARENA PROJECT) SERIES 2008**

**CERTIFICATE OF THE ISSUER**

**DATED JANUARY 25, 2008**

**THIS CERTIFICATE** OF THE ISSUER is **dated** January 25, 2008. This **closing** certificate is delivered to you simultaneously with the purchase of **and** payment for **$8,490,000** in **aggregate** principal amount of those certain Sports Facility Revenue Bonds (North Shore Ice Arena Project), Series 2008**, issued** in the aggregate principal amount of **$8,490,000** (**the** "Bonds"**)**, of the Illinois Finance Authority (the "Authority"). The Bonds are issued **under and** pursuant to the terms **and** provisions of the Trust Indenture dated as of January 1, 2008 (the **"Original** Indenture") between the Authority and Amalgamated Bank of Chicago, as trustee (hereinafter referred to as **the** "Indenture"). Terms not otherwise defined herein **shall have** the meanings set forth in the Indenture. **The** undersigned, Executive Director **and** Secretary (or Assistant Secretary**),** respectively, of the **Authority**, acting for the Authority, do hereby **certify as** follows:

1. They **are the** duly elected or appointed, qualified **and** acting Executive Director and Secretary (or Assistant Secretary**),** respectively, of **the** Authority and as such Executive Director and Secretary **(or** Assistant Secretary) are **familiar with** the books and corporate records of the Authority.

2. Attached hereto as Exhibit **A** is a true, complete and correct copy of a resolution duly adopted by an affirmative vote of at least **eight (8)** members of the Authority voting at a **duly called** meeting of the members of **the** Authority held on November 13, 2007**,** at which a quorum was present and acting throughout (the "Bond Resolution"); the Bond Resolution **is in full** force **and** effect and has not been **altered,** amended or repealed **as** of the **date** hereof; said meeting was duly called in accordance **with law** and the By**-laws** of the Authority **(**a copy of such By-laws is attached hereto as Exhibit **B); and** notice of said **meeting, including** the agenda therefor (a copy of such Notice **is** attached hereto **as** Exhibit C), was given to the media and **was** posted at the principal office of the Authority **at least 48** hours **before** the time of the meeting **and remained** so posted **until** the meeting **was** held. Copies of each notice were mailed to all persons**, if any,** who had submitted a request for it.

3. Attached hereto **as** Exhibit D is a true**,** complete and correct copy of a resolution duly adopted by an **affirmative** vote **of at** least **eight** (**8)** members of the Authority voting at a duly called meeting of the members of the Authority held on January 15, 2008, at which a quorum was present and acting throughout **(the** "Supplemental Bond Resolution**"); the** Supplemental **Bond** Resolution is **in** full force and effect and has not been altered, amended or repealed as of the date hereof; said meeting **was** duly called in accordance **with law** and **the** By-laws of the Authority**;** and notice of said meeting, including the agenda therefor **(a copy** of such Notice is attached hereto as Exhibit E), **was** given to **the** media and was posted at **the** principal office of the Authority at least 48 hours before the time of **the** meeting and remained so posted until **the**

meeting was held. Copies of each notice were mailed to all persons, if any, who had submitted a request for it.

4. The following described instruments, as executed and/or attested and delivered by the Chairman, Executive Director, Treasurer, Secretary or Assistant Secretary of the Authority, are in substantially the same form and text as the copies of such instruments which were before and approved by the members of the Authority at the meetings referred to in paragraphs 2 and 4 above, with such changes and revisions as

have been approved by said officers in conformity with the Bond Resolution and the Supplemental Bond Resolution:

| Instrument | Date | Other Party or Parties |
|---|---|---|
| Loan Agreement | January 1, 2008 | North Shore Ice Arena, LLC (the "Borrower"), Wilmette Hockey Association, Inc. ("Wilmette Hockey Association"), Winnetka Hockey Club, Inc. ("Winnetka Hockey Club" and together with Wilmette Hockey Association, the "Guarantors") |
| Trust Indenture | January 1, 2008 | Trustee |
| Bond Purchase Agreement | January 17, 2008 | |

Oppenheimer & Co. Inc. (the "Underwriter"), Borrower and the Guarantors

The instruments set forth above, together with the Tax Exemption Certificate and Agreement dated as of January 25, 2008, among the Authority, the Borrower and the Guarantors are sometimes collectively referred to as the "Authority Documents."

5. A schedule of the names of the incumbent members of the Authority and their terms of office is set out in Exhibit F attached hereto. The persons named on Exhibit F as officers of the Authority were, on the date or dates of the execution of the Authority Documents, the duly elected or appointed and qualified incumbents of the offices of the Authority set opposite their respective names and the signatures appearing at the right of their respective names are the true and genuine signatures of said officers.

6. The Executive Director and the Secretary (or Assistant Secretary) of the Authority did manually execute and attest, respectively, on behalf of the Authority, the Authority Documents and the Chairman did manually or by facsimile signature execute and the Secretary (or Assistant Secretary) did manually or by facsimile signature attest the Bonds issued under the Bond Resolution, as more fully described in paragraph 6 following. The official seal of the Authority has been affixed to, impressed or printed on, the Bonds and impressed on this Closing Certificate. For any officer, if any, who executed any of the foregoing documents by facsimile signature, attached hereto as Exhibit G are true, complete and correct copies of certificates of the Secretary of State of Illinois as to the filing of the facsimile signatures of said officer(s).

7. The Bonds are being issued in registered form, numbered R-1 through R-4. All of the Bonds are dated January 25, 2008, mature as to principal and bear interest as provided therein and in the Indenture, such principal and interest being payable as set forth therein and in the Indenture.

8. Attached hereto as Exhibit H is a copy of the Notice of TEFRA Hearing, Proof of Publication and the Transcript of the TEFRA Public Hearing.

9. To our knowledge, except as otherwise noted herein, no amendments to the Illinois Finance Authority Act (the "Act") under which the Authority was created and exists have become law subsequent to November 13, 2007, the date of the adoption of the Bond Resolution.

10. The Authority has duly authorized, executed and delivered by all necessary action, the Bonds and each of the Authority Documents, and as of the date hereof, each is in full force and effect, each constitutes the valid, binding and enforceable obligation of the Authority, and the Authority is entitled to



the benefits of the same. The obligations of the Authority and the enforceability thereof with respect to the Authority Documents are subject, in part, to the provisions of the bankruptcy laws of the United States of America and to other applicable bankruptcy, insolvency, reorganization, moratorium of similar laws relating to or affecting the enforcement of creditor's rights generally, now or hereafter in effect.

Certain of the obligations and the enforcement thereof, contained in the Bonds and the Authority Documents are also subject to general equity principles which may limit the specific enforcement of certain remedies, but which do not affect the validity of such documents. The Authority has duly approved for use and distribution the Limited Offering Memorandum dated January 17, 2008 relating to the Bonds (the "Offering Memorandum").

11. Any certificate signed by an officer of the Authority and delivered to the purchaser of the Bonds shall be deemed a representation and warranty by the Authority as to the statements made by the Authority therein.

12. The representations and warranties of the Authority contained in the Indenture, the Loan Agreement and the Bond Purchase Agreement are true and correct in all material respects on and as of the date hereof with the same effect as if made on the date hereof.

13. The Authority has complied in all material respects with all covenants and satisfied in all material respects all conditions and terms of the Indenture and the Loan Agreement on its part to be complied with or satisfied at or prior to the date hereof.

14. No action, suit, proceeding or investigation, at law or in equity, before or by any court, any governmental agency, authority, body, board or arbitrator or any public board or body is pending (as to which authority has received service of process) or, to the Authority's actual knowledge, threatened and no referendum or public vote is pending (a) in any way seeking to restrain or enjoin the issuance, sale or delivery of any of the Bonds or the payment, collection or application of the proceeds thereof or the payments of other moneys or other properties pledged or to be pledged under the Indenture and the Loan Agreement, (b) in any way contesting, questioning or affecting the validity, issuance or delivery of the Bonds or the authority of the Authority to issue, to deliver or to secure the Bonds in the manner provided in the Indenture and the Act or the proceedings of the Authority under which the Bonds were issued, or the validity of, or the Authority's power to engage in any of the transactions contemplated by, the Authority Documents, the Bond Resolution, or the Bonds, (c) in any way questioning or contesting the creation, the organization, the existence or the powers of the Authority, (d) in any way contesting the title of any of the present members or other officials of the Authority to their respective offices, or (e) in any way contesting or questioning the exclusion from federal gross income of the owners of interest paid on the Tax Exempt Bonds.

15. As of the date hereof, the Authority has no actual knowledge of an event of default, as specified in any of the Authority Documents, and no event which, with the giving of notice or the lapse of time, or both, would become such an event of default under any of the Authority Documents, occurring.

16. The revenues and income to be derived from the Loan Agreement and assigned and pledged under the Indenture, have not been assigned, pledged or hypothecated by the Authority except to the Trustee in the manner set forth in the Indenture for the payment of the Bonds.

17. The meetings of the Authority referred to above have been open to the public and held in

accordance with procedures adopted by the Authority, the By-laws of the Authority and Illinois Open Meetings Act, as supplemented and amended.

18. The execution, delivery and performance of the Authority Documents and the issuance and sale of the



Bonds will not violate the By-laws of the Authority or any resolution or proceedings of the Authority, or any judgment, order, rule or regulation of any court or of any public or governmental agency or authority applicable to the Authority (other than Federal and State securities and arbitrage laws and regulations, as to which no statement is made), and will not conflict with, violate or result in a material breach of any of the provisions of, or constitute a default under any indenture, mortgage, deed of trust or other agreement or instrument to which the Authority is a party, or by which it or its properties are bound.

19. All approvals, consents authorizations and orders required to be obtained by the Authority in connection with the issuance, sale and delivery of the Bonds and the execution, delivery and performance of, and the consummation of the transactions contemplated by, the Authority Documents

have been duly obtained as required by law (provided, however, no representation is made as to any Federal and State securities laws).

20. As of the date hereof, the Authority does not have bonds and notes outstanding for any of its corporate purposes, including the Bonds, in an aggregate principal amount exceeding $25,200,000,000, excluding bonds and notes issued to refund outstanding bonds and notes of the Authority or a Predecessor Authority.

21. To the undersigned Authority officers' actual knowledge, those portions of the Offering Memorandum captioned "THE AUTHORITY" and "LITIGATION" do not contain any untrue statement of a material fact or omit to state a material fact necessary to make the statements made therein, in light of the circumstances under which they were made, not misleading, and no event affecting the Authority has occurred since the date of the Offering Memorandum that is required to be disclosed in the Offering Memorandum for the purposes for which it and said portions are to be used, or that is necessary to be disclosed therein to make the statements and information therein, in light of the circumstances under which they were made, not misleading in any material respect.

**[SIGNATURES FOLLOW ON THE NEXT PAGE]**

IN WITNESS WHEREOF, we have executed this certificate and affixed the official seal of the Authority as of the date first above written.

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**ILLINOIS FINANCE AUTHORITY**

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Executive Director

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**By:**

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Secretary

**EXHIBIT A**

**[FOLLOWS ON THE NEXT PAGE]**

**RESOLUTION NO. 2007-11-08**

**RESOLUTION OF THE ILLINOIS FINANCE AUTHORITY, A BODY POLITIC AND CORPORATE OF THE STATE OF ILLINOIS (THE "ISSUER"), PROVIDING FOR THE ISSUANCE OF NOT TO EXCEED $10 MILLION IN AGGREGATE PRINCIPAL AMOUNT OF ITS SPORTS FACILITY REVENUE BONDS, SERIES 2007 (NORTH SHORE ICE ARENA PROJECT) (THE "BONDS"), THE PROCEEDS OF WHICH ARE TO BE LOANED TO**

**NORTH SHORE ICE ARENA, LLC, AN ILLINOIS LIMITED LIABILITY COMPANY (THE "BORROWER"), FOR THE PURPOSE OF PAYING FOR, OR REIMBURSING THE BORROWER OR WILMETTE HOCKEY ASSOCIATION, INC., AN ILLINOIS NOT FOR PROFIT CORPORATION (THE "GUARANTOR") FOR, CERTAIN COSTS OF ACQUIRING, CONSTRUCTING, REMODELING, RENOVATING AND EQUIPPING CERTAIN PROJECTS WHICH SHALL CONSTITUTE AN "INDUSTRIAL PROJECT" UNDER THE ACT, AS DESCRIBED HEREIN, ESTABLISHING A DEBT SERVICE RESERVE. FUND FOR THE BONDS, PAYING A PORTION OF THE INTEREST ACCRUING ON THE BONDS DURING THE PERIOD OF CONSTRUCTION OF THE PROJECT, AND PAYING CERTAIN EXPENSES INCURRED IN CONNECTION WITH THE ISSUANCE OF THE BONDS, WHICH BONDS WILL BE PAYABLE FROM LOAN PAYMENTS AND OTHER AMOUNTS DESCRIBED IN THE HEREIN DESCRIBED TRUST INDENTURE; AUTHORIZING THE EXECUTION OF THE LOAN AGREEMENT AND TRUST INDENTURE IN CONNECTION WITH THE SALE OF THE BONDS; AUTHORIZING THE DISTRIBUTION OF A LIMITED OFFERING MEMORANDUM; AND SETTING FORTH THE TERMS AND CONDITIONS UPON WHICH THE BONDS ARE TO BE ISSUED AND PROVIDING FOR OTHER MATTERS CONSISTENT WITH THE ISSUANCE, SALE AND DELIVERY OF THE BONDS.**

**WHEREAS,** the Illinois Finance Authority (the "Issuer") is a political subdivision, body politic and corporate of the State of Illinois created under and pursuant to the Illinois Finance Authority Act, 20 ILCS 3501/801-1 et seq., as amended (the "Act"); and

**WHEREAS,** pursuant to the provisions of the Act, the Issuer is authorized and empowered to issue its revenue bonds to finance the acquisition, construction, refurbishment, creation, development or redevelopment of "industrial projects" within the meaning of the Act and lend the proceeds thereof to any person or institution; and

**WHEREAS,** to promote a public purpose and to accomplish the purposes of the Act, the Issuer has agreed with North Shore Ice Arena, LLC, an Illinois limited liability company (the "Borrower"), and Wilmette Hockey Association, Inc., an Illinois not for profit corporation (the "Guarantor"): to (i) pay for, or reimburse the Borrower or the Guarantor for, certain costs of acquiring, constructing, remodeling, renovating and equipping facilities of the Borrower to be located in the Village of Northbrook, Illinois, Cook County, Illinois; (ii) finance capitalized interest on the Bonds; (iii) establish a Debt Service Reserve Fund; and (iv) pay certain expenses incurred in connection with the issuance of the Bonds (the "Project"); and



**WHEREAS,** the Project is an "industrial project" within the meaning of the Act and will be of the character and will accomplish the purposes provided in the Act; and

**WHEREAS,** the Issuer wishes to provide for the financing of the Project by the sale and

issuance of its Sports Facility Revenue Bonds (North Shore Ice Arena Project), Series 2007 (the "Bonds"), in an aggregate principal amount not to exceed $10,000,000 pursuant to and in accordance with the Act and this Resolution authorizing the Bonds; and

**WHEREAS,** the Bonds and the obligation to pay interest thereon are special, limited obligations of the Issuer, payable solely out of the revenues and income derived from the Loan Agreement hereinafter referred to and as otherwise provided in the Trust Indenture hereinafter referred to and the Loan Agreement; the Bonds and the obligation to pay interest thereon shall not be deemed to constitute an indebtedness or an obligation of the Issuer, the State of Illinois or any political subdivision thereof within the purview of any constitutional limitation or provision or a charge against the general credit or taxing powers, if any, of any of them; and neither the Underwriter hereinafter referred to nor any future holder of the Bonds shall have the right to compel any exercise of the taxing power, if any, of the Issuer, the State of Illinois or any political subdivision thereof to pay any principal installment of or interest on the Bonds; and

**WHEREAS**, pursuant to the provisions of Section 147(f) of the Internal Revenue Code of 1986, as amended, a public hearing on the proposed plan of financing of the Project and the issuance of the Tax Exempt Bonds was held by the Interim Executive Director of the Authority or his designee, on September 28, 2007, pursuant to a notice published at least fourteen (14) days prior to such public hearing in The *State Journal-Register,* a newspaper qualified by law to publish legal notices in the City of Springfield, in Sangamon County, Illinois, and in *The Daily Herald,* a newspaper qualified by law to publish legal notices in the Village of Northbrook, Illinois, Cook County, Illinois, on September 21, 2007; and

**WHEREAS,** the Issuer proposes to execute and deliver a Loan Agreement (the "Loan Agreement") among the Issuer, the Guarantor and the Borrower, pursuant to which the proceeds from the sale of the Bonds will be used by the Issuer to make a loan to the Borrower for the purpose of financing a portion of the cost of the Project, and the Borrower will covenant and agree to make payments sufficient to provide for the payment of the principal of, interest on and other amounts payable on the Bonds, as and when the same become due and payable; and

**WHEREAS,** in order to provide security for the obligations under the Loan Agreement, the Borrower will grant a mortgage and security interest in the real property and all improvements thereon (including the building to be constructed) constituting the Project pursuant to terms of one or more mortgage and security agreements (the "Mortgage") by the Borrower in favor of the Trustee (as defined below); and

**WHEREAS,** the Bonds will be issued under and pursuant to, and are to be secured by a Trust Indenture (the "Indenture"), between the Issuer and Amalgamated Bank of Chicago, as

trustee (the "Trustee"); and



**WHEREAS,** the Borrower has requested the Issuer to enter into a Bond Purchase Agreement (the "Bond Purchase Agreement") with the Borrower and RBC Capital Markets, as the Underwriter with respect to the initial sale of the Bonds (the "Underwriter"); and

**WHEREAS,** the Borrower has requested that the Bonds be issued pursuant to the Indenture, under which the Issuer will pledge, among other things, the income and revenues received under the Loan Agreement as security for the Bonds; and

**WHEREAS,** a Limited Offering Memorandum relating to the Bonds in substantially the form of a Preliminary Limited Offering Memorandum (the "Limited Offering Memorandum") delivered to the Issuer and distributed in connection with the Bonds will be distributed in connection with the marketing of the Bonds; and

**WHEREAS,** copies of the forms of the following documents relating to the transactions described above have been filed with the Issuer:

(a) the Indenture, with a copy of the form of the Bonds attached thereto as an Exhibit; the Loan Agreement;

(b)

(c) the Bond Purchase Agreement; and

(d) Limited Offering Memorandum.

**WHEREAS,** it appears that each of the instruments above referred to, which are now before this meeting, is in appropriate form and each instrument referred to above is an appropriate instrument to be executed and delivered by the Issuer for the purpose intended;

**NOW, THEREFORE, BE IT RESOLVED** by the members of the Illinois Finance Authority, as follows:

**Section** 1. Pursuant to the Act, the Issuer does hereby authorize the financing of a portion of the cost of the Project in accordance with the terms of the Loan Agreement

and the Indenture and does hereby determine it is in furtherance of the public purposes set forth in the Act, and that, therefore, providing for the financing of the Project through the issuance and sale of the Bonds is in the public interest.

**Section 2.** For the purpose of financing a portion of the cost of the Project, the issuance of revenue bonds of the Issuer to be known as the "Sports Facility Revenue Bonds (North Shore Ice Arena Project), Series 2007", in an aggregate principal amount not to exceed $10,000,000 is hereby authorized. The Borrower has agreed that to the extent bond proceeds are not sufficient to pay all of the costs of financing the Project, the Borrower will pay all such excess costs in order to complete the financing of the Project. Any such payments made by the Borrower shall in no manner affect or reduce the payments required by the Loan Agreement hereinafter authorized and approved.

Section 3. The Bonds shall be issued in such form and denominations as are set forth in the Indenture and the interest on the Bonds will be payable on the dates and at such places as are specified in or determined pursuant to the Indenture, but the Bonds shall mature not later than 40 years from the date of issuance. The Bonds shall have an original issue date, shall mature, shall be subject to redemption and shall bear interest as provided in the Indenture. The Bonds shall



initially bear interest at the rates as determined by the Underwriter pursuant to and in accordance with the Indenture. The Bonds shall be dated and numbered as provided in the Indenture. The forms of the Bonds and the provisions for execution, authentication, payment and registration shall be substantially as set forth in the Indenture.

**Section 4.** The Bonds shall be special, limited obligations of the Issuer and, except to the extent payable from Bond proceeds or moneys from the investment thereof, shall be payable solely from the revenues and receipts and other amounts received by or on behalf of the Issuer pursuant to the Loan Agreement, from certain funds pledged under the Indenture. The Bonds will also be secured by the Mortgage. The Bonds and interest thereon shall not be deemed to constitute an indebtedness or an obligation of the Issuer, the State of Illinois or any political subdivision thereof within the purview of any constitutional limitation or statutory provision or a charge against the general credit or taxing powers, if any, of any

of them. No taxing powers, if any, of the Issuer, the State of Illinois or any political subdivision thereof are available to pay the Bonds or interest thereon. The special, limited nature of the obligation represented by the Bonds is more fully set forth in the Indenture.

**Section 5.** The payments under the Loan Agreement to be received by the Issuer under the terms of the Loan Agreement, as represented by the Borrower, are calculated to be sufficient to pay the principal of and premium, if any, and interest on the Bonds as the same become due and payable, and all of such payments shall be pledged for that purpose pursuant to, and in addition to such other purposes as are more fully set forth and provided for in, the Indenture.

**Section 6.** The execution, delivery and performance of the Indenture, the Loan Agreement and the Bond Purchase Agreement by the Issuer, are hereby authorized. The Indenture, the Loan Agreement and the Bond Purchase Agreement shall be in substantially the forms submitted to this meeting as hereinabove recited, with such changes, insertions or omissions as may be approved by the Chairman, Vice Chairman, Treasurer or Executive Director of the Issuer, whose approval thereof shall be evidenced by his execution of each such instrument.

**Section 7.** The offering of the Bonds by the Underwriter pursuant to the Bond Purchase Agreement is hereby authorized and approved. The selling of the Bonds by the Underwriter at the price of not less than 97% of the principal amount of the Bonds is hereby approved. The execution, delivery and performance of the Bond Purchase Agreement shall be in substantially the form submitted to this meeting as hereinabove recited, with such changes, insertions or omissions as may be approved by the Chairman, Vice Chairman, Treasurer or Executive Director of the Issuer (or any person duly qualified and appointed by the Members to serve in such office on an interim basis), whose approval thereof shall be conclusively evidenced by his execution of the Bond Purchase Agreement.

**Section 8.** The Issuer does hereby authorize and approve the distribution of a Preliminary Limited Offering Memorandum and a Limited Offering Memorandum relating to the Bonds by the Underwriter to be approved by the officer executing the Bond Purchase Agreement, but subject to the limitations and representations with respect thereto made by the Issuer as set forth herein.



**Section 9.** The execution and delivery of the Bonds to the Trustee, for authentication, acceptance and redelivery of the authenticated Bonds, and the delivery of the Bonds to the purchasers thereof or their duly authorized attorneys-in-fact, against receipt by the Trustee of the amount of the purchase price for the Bonds in payment therefor, together with the payment of

certain expenses in connection with the issuance of the Bonds, are hereby authorized.

Section 10. The Chairman, Vice Chairman, Treasurer or Executive Director of the Issuer (or any person duly qualified and appointed by the Members to serve in such office on an interim basis) is hereby authorized to execute on behalf of the Issuer the Indenture, the Loan Agreement, the Bond Purchase Agreement and the Bonds, and the Secretary or Assistant Secretary of the Issuer is hereby authorized to attest such documents, and the Chairman, Vice Chairman, Treasurer or Executive Director (or any person duly qualified and appointed by the Members to serve in such office on an interim basis) and the Secretary or Assistant Secretary are hereby authorized to deliver such instruments and documents on behalf of the Issuer and to execute and deliver all such instruments, documents or certificates, and to do and perform all such things and acts, as each shall deem necessary or appropriate in furtherance of the issuance of the Bonds and the carrying out of the transactions authorized by this Resolution or contemplated by the instruments referred to in this Resolution. The Bonds shall be executed on behalf of the Issuer by its Chairman, Vice Chairman, Treasurer or Executive Director (or any person duly qualified and appointed by the Members to serve in such office on an interim basis) with his/her manual or facsimile signature and attested by the manual or facsimile signature of the Secretary or Assistant Secretary. In case any official whose signature appears on any Bond shall cease to be such official before the delivery of such Bond, such signature shall nevertheless be valid and sufficient for all purposes, the same as if he or she had remained in office until delivery.

Section 11. The Indenture, the Loan Agreement, the Bond Purchase Agreement, the Limited Offering Memorandum, as approved or acknowledged by this Resolution, all of which are hereby incorporated in this Resolution by reference thereto, shall be placed on file at the office of the Issuer and made available for public inspection by any interested party immediately following the passage and approval of this Resolution.

Section 12. The Chairman, Vice Chairman, Treasurer or Executive Director (or any person duly qualified and appointed by the Members to serve in such office on an interim basis) and the Secretary or Assistant Secretary are hereby authorized to take all actions and execute all additional documents, including, without limitation, an IRS Form 8038 (with respect to the Tax Exempt Bonds) and a Blanket Issuer Letter of Representations with The Depository Trust Company ("DTC"), as are reasonably necessary and appropriate to the issuance of the Bonds. The Trustee is authorized to file a UCC Financing Statement and amendments and continuations thereof naming the Issuer as Debtor and evidencing the grant of the security interest in favor of the Trustee pursuant to the Indenture.

Section 13. The appointment of Amalgamated Bank of Chicago, as the Trustee under the Indenture and RBC Capital Markets, as the underwriter under the Bond Purchase Agreement, are hereby approved.

**Section 14.** The Bonds may **be** initially issued in book-entry form and registered in the name of DTC, **or** its nominee**,** as securities depository.



**Section 15.** If any section, paragraph, clause or provision of this Resolution shall be ruled by any court of competent jurisdiction to be invalid, **the** invalidity **of** such section, paragraph, clause or provision shall not affect any of the remaining sections, paragraphs, clauses or provisions hereof.

**Section 16.** All acts of officials of the **Issuer** which are in conformity with the purposes **and** intent of **this** Resolution and in **furtherance** of the issuance and sale of the Bonds and **the** financing of the Project **shall** be, and the same are, in all respects approved, ratified and **confirmed**. All resolutions and orders, or parts thereof, in conflict with the provisions of this Resolution are, to **the** extent of such conflict, hereby repealed and superseded.

**Section 17. This** Resolution shall become effective immediately upon its adoption.

Approved and effective **this 13th** *day* of November, 2007 by roll call vote as follows:

AYES**:** 10

**NAYS: 0**

ABSTAIN: **0**

ABSENT: **5**

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CHAIRMAN

**EXHIBIT B**

**[FOLLOWS ON THE NEXT PAGE]**

**Resolution Number 2007-07-21**

## Resolution Adopting the Amended and Restated By-Laws of the Illinois Finance Authority

BE IT RESOLVED BY THE ILLINOIS FINANCE AUTHORITY, AS FOLLOWS:

**Section 1. Authority**. This resolution is adopted pursuant to Section 801-25 and Section 801-30 of the Illinois Finance Authority Act, 20 Illinois Compiled Statutes 3501/801-1 et seq. (the "Act").

**Section 2. Adoption of By-laws**. The following Amended and Restated By-laws are adopted as the By-laws of the Illinois Finance Authority.

# BY-LAWS

## ARTICLE I

## ORGANIZATION

**Section 1. Name.** The name of the Authority shall be the Illinois Finance Authority (the "Authority"), as provided in Section 801-25 of the Illinois Finance Authority Act, 20 ILCS 3501/801-1 et *seq.* (the "Act").

**Section 2. Status**. The Authority is a body politic and corporate of the State of Illinois, duly organized and existing under the Act

**Section 3. Principal Office.** The principal office of the Authority shall be located at Chicago, Illinois. The Authority may maintain a branch office anywhere in the State, and may utilize, without payment of rent, any office facilities that the State may conveniently make available to it

**Section 4. Seal**. The corporate seal of the Authority shall be a circular disk, having described around the periphery thereof the words "Illinois Finance Authority", and in the center the word "Seal".

## ARTICLE II

## MEMBERSHIP

**Section 1. Membership of the Authority**. The Authority is comprised of fifteen (15) members appointed by the Governor, with the advice and consent of the Senate of the State of Illinois. The members of the Authority shall be persons of recognized ability and experience in one or more of the following areas: economic development, finance, banking, industrial development, small business management, real estate development, housing, health facilities financing, local government financing, community development venture finance, agricultural finance, construction, and labor relations.

**Section 2. Term** of **Office**. The provisions for the terms of office, vacancies and removal of members of the Authority are established in Section 801-15 of the Act.

**Section 3. Powers**. The members of the Authority shall possess and exercise all the powers granted in the Act, and by all other statutes of the State of Illinois specifically naming the Authority; and such other powers not inconsistent with the Act as are authorized by the general laws of the State of Illinois and as may be necessary to effectuate the purposes of the Act. The Executive Director or any committee of the Authority may carry out such responsibilities of the Authority as the Authority by resolution may delegate.

ARTICLE III

OFFICERS **OF** THE **AUTHORITY**

**Section 1. Chairperson.** The Chairperson of the Authority shall be selected by the Governor for a term of two years. The Chairperson shall preside at all meetings of the Authority and perform such other duties as shall be necessary or desirable by reason of his or her position as Chairperson or as may be directed by a duly adopted resolution of the Authority.

**Section** 2. **Vice Chairperson or Acting Chairperson**. At the direction of the Authority a Vice Chairperson or Acting Chairperson shall be elected by the Authority from among its members for a term expiring on the date of the next annual meeting following such election and **if so** elected he or she shall preside at meetings **of** the Authority and perform all duties incumbent upon the Chairperson during the absence or disability of the Chairperson.

**Section 3.** Secretary **and Treasurer.** The Authority shall appoint a Secretary and a Treasurer, who may, but need not, be members of the Authority, to hold office during the pleasure of the Authority. Before entering upon the duties of Secretary or Treasurer such person shall satisfy the applicable conditions and requirements specified in Section 845-40 of the Act. The Secretary shall keep the minutes of all meetings, maintain custody of **the** Authority seal, and shall execute such documents and perform such other duties as shall be directed by the Authority from time to time. The Treasurer shall collect, receive and deposit all funds of the Authority as provided by law.

**Section** 4. **Assistant** Secretary**.** The Authority may, but need not, appoint from time to time, **one or** more Assistant Secretaries who may, but need not be, a member or members **of** the Authority, **to** perform any of the duties imposed upon **the** Secretary unless the Authority **or** the Secretary shall otherwise direct.

**Section** 5. **Executive Director.** From nominations received from the Governor, the members of the Authority shall appoint an Executive Director. The Executive Director shall hold office **for** a one year term. The Executive Director shall be the chief administrative and operational officer **of** the Authority and shall direct and supervise its administrative affairs and general management and perform other such duties as may be prescribed by the members of the Authority from time to time.

**Section 6. Continuation in Office Pending Appointment of Successor.** The Chairperson and the Executive Director shall remain in **office** after the expiration of their term of office pending the appointment and qualification of their successor.

## ARTICLE IV

## MEETINGS

**Section 1. Annual Meeting**. The annual meeting of the Authority shall be held in July on such day and at such time and place as may be designated by the Authority, or in the absence **of** such action, by the Chairperson. The Authority shall hold an annual meeting in January of 2004 for the fiscal year ending June 30, 2004.

**Section** 2. **Regular Meetings**. The time, date and location of all regular meetings for the fiscal year in which the Annual Meeting takes place shall be established by resolution at the Annual Meeting. Immediately following such Annual Meeting, a schedule reflecting the time, date and location of the meetings so established shall be prepared, posted and distributed in accordance with the Open Meetings Act (5 ILCS 120/1 *et* ***seq***., as supplemented and amended) **(the** "Open Meetings Act"). The time, date and location **of** any regular meeting may be changed by resolution of the members of the Authority in compliance with the Open Meetings Act.

**Section** 3. **Special Meetings**. A special meeting of the Authority may be held upon call by the Chairperson, or any three (**3**) members of the Authority upon not less than forty-eight (48) hours notice to the public and each member **of** the Authority. Such notice shall specify the time, date and location of the meeting, include an agenda, and be given to the public in the form and manner specified by the Open Meetings Act.

**Section 4. Emergency Meetings.** An emergency meeting of the Authority may be held upon call by the Chairperson, or any three (3) members of the Authority. Notice of an emergency meeting shall be given **as** soon as practicable, but in any event prior to the holding of such meeting, to any news medium which has filed an annual request for such notice. Such notice shall specify the time, date and location of the meeting, include an agenda, and **be** given to **the** public in **the** form and manner specified by the Open Meetings Act. At the beginning of an emergency meeting, the chairman shall briefly describe, **for** the record, the emergency circumstance(s) and such comments shall appear in the minutes.

**Section** 5. **Quorum and Voting**. Eight (8) members of the Authority shall constitute a quorum. All official acts of the Authority shall require the approval of at least eight **(8)** members. All meetings shall be conducted at a single location within the State with a quorum of members physically present at this location. Other members who **are not** physically present at **this** location may participate **in the** meeting and vote on all matters by means **of** a video or **audio** conference in accordance with policies adopted by the Board from time to time. During the roll call of the members at any Authority meeting, the Secretary **or** Assistant Secretary shall call the name of **the** members physically present at the meeting and the name of those members participating by means of a video or audio conference. Each member participating by means of a video **or** audio conference shall be deemed authorized to attend, participate in, and vote at, the meeting once their name has been called into the roll of the members **or** called during any roll call vote of the

members taken at such meeting.

Voting by the members on all official acts of the Authority, including, but not limited to, all resolutions, ordinances, by-laws, rules and regulations for the conduct of its business and affairs, shall be recorded. A member may make a statement for the record respecting **the** reasons for the casting of **his or** her vote. Any member wishing to do so shall declare "with a statement" after responding to roll call and casting his or her vote. Upon the completion of voting by **the** members **on** any particular official act **of** the Authority, and before the recording of such voting, the Chairperson shall call upon each member who has declared an intention to make a statement. Each **such** member, when



called upon by the Chairperson, shall make a concise statement respecting any reasons **for** the casting of his or her vote. Such a statement shall be recorded with the member's vote. Any vote of a member at any meeting or on any issue shall be cast by the member and not by **proxy**.

**Section** 6. **Order** of **Business and Agenda.** The Executive Director in consultation with **the** Chairperson shall establish the agenda for meetings **of** the Authority, provided that the Chairperson **or** any two **(2**) members of the Authority may direct that a matter be placed on the agenda. Unless otherwise provided by law, the Act, rules **of** the Authority **or** these By-Laws, the business of the Authority at **any** regular or **special** meeting shall be conducted **pursuant** to Robert's Rules **of** Order Newly Revised (2000 ed.).

**Section 7. Written Minutes**. The Secretary shall keep written minutes of all meetings of the Authority which shall contain, at a minimum, the following: a) the date, time and location of the meeting; b) the members of the Authority recorded as either present or absent; c) whether the members of the Authority are attending the meeting in person or by other means; d) the specific wording of resolutions adopted; e) a general description of all matters proposed, discussed or decided; and f) a record of any vote taken, together with any statement made for the record by any member respecting his or her vote. Said minutes shall **be** made available for public inspection in accordance with the Open Meetings Act (5 ILCS 120, *et seq.)*.

**Section 8. Conflicts**. In the event of a conflict, the provisions of the Act, as amended from time to time, shall supersede these By-Laws.

**ARTICLE V**

**ADMINISTRATIVE** PERSONNEL

**Section 1. Controller**. The Authority may, upon such terms and conditions as it shall deem proper, employ a Controller who shall have custody **of** the Authority's financial records, **and who** shall keep or cause to be kept full **and** accurate books and records of the accounts of the Authority. The Controller, if one is employed, shall exercise all powers and duties as may from time to time be assigned to him or her by the Authority. Before

entering upon the duties of Controller, such person so employed shall execute a bond with a corporate surety. Such surety bond shall be in an amount and by such surety company as the members may determine. Such surety bond shall be conditioned upon the faithful performance of the Controller of his or her duties, and shall be executed by a surety company authorized to transact business in the State of Illinois as surety.

**Section 2. Assistant Executive Directors**. The Authority may employ one or more Assistant Executive Directors upon such terms and conditions as the Authority shall deem proper.

**Section 3. Other Personnel**. The Authority may engage the services of such other agents and employees, including attorneys, appraisers, engineers, accountants, credit analysts and other consultants, as it may deem advisable, and may prescribe their duties and fix their compensation.

ARTICLE VI

**ADMINISTRATION**

**Section 1. Audit and Accounting Procedures**. The accounts and books of the



Authority, including its receipts, disbursements, contracts and other matters relating to its finances, operation and affairs shall be examined and audited at the end of each fiscal year by the Auditor General or by a firm of certified public accountants which shall certify its audit to the Comptroller of the State of Illinois.

**Section 2. Fiscal Year**. The initial fiscal year of the Authority shall end on June 30, 2004. Each subsequent fiscal year for the Authority shall commence on the first of July.

**Section 3. Annual Budget/Salary Schedule**. The Authority shall not incur any obligations for salaries, office or other administrative expenses prior to the making of appropriations to meet such expenses. At the beginning of each fiscal year, the Executive Director shall present a tentative budget for consideration by the members of the Authority. Approval of such budget shall be deemed as appropriating funds to meet such expenses. Additionally, the members of the Authority shall establish the salary of the Executive Director for the fiscal year, and the Executive Director shall establish a salary schedule for the employees of the Authority for the fiscal year. The Executive Director shall report to the members of the Authority the employee salary schedule. The salaries established for the prior fiscal year shall remain in effect until the new salaries for the forthcoming or current fiscal year are established. At any time during the fiscal year, the budget and salary of the Executive Director may be amended by a vote of the members of the Authority and the employee salary schedule may be amended by the Executive Director (in which case such amendment shall be reported to the members of the Authority); any such amendment is to be deemed an additional or supplementary appropriation of funds. Prior to January 31, 2004, the members shall

approve the budget of the Authority for the initial fiscal year.

**Section** 4. **Reports**. As soon after the end of each fiscal **year** as may be expedient, the Authority shall cause to be prepared and printed a complete report and financial statement of **its** operations and of **its** assets and liabilities. A reasonably sufficient number of such reports shall be printed for distribution to persons interested, upon request, and a copy thereof shall be filed with the Governor, the Secretary of State, the Comptroller, the Secretary of the Senate and the Chief Clerk of the House of Representatives of the State of Illinois.

**Section 5. Execution of Documents**. All contracts and agreements entered into by the Authority shall, except **for** those instances described in Section 7 of this Article**,** or unless the members by resolution otherwise direct, **be** executed on behalf **of** the Authority by the Chairperson, Executive Director, any Assistant Executive Director or Treasurer, and may be attested to by the Secretary or any Assistant Secretary. Nothing in these By-Laws shall **be** deemed to limit **in** any manner **the** right of **the** members **by** resolution adopted **at** a meeting to delegate other **or** different officers **to** execute a specific document or documents at any time. Nothing in these By-Laws shall be deemed to prohibit the use of facsimile signatures where compliance has been had with -the Uniform Facsimile Signature of Public Officials Act of the State of Illinois. (30 ILCS **320/1** *et seq*., as supplemented and amended).

**Section 6. Deposit and Withdrawal** of **Authority Funds**. All funds deposited by the Treasurer in any bank shall be placed in the name of the Authority **and** shall be withdrawn and paid out only by check or draft upon **the** bank, signed by (i) the Treasurer and countersigned by the Chairperson or the Executive Director; **(ii**) the Chairperson and countersigned by the Treasurer or the Executive Director or (**iii**) the Executive Director and countersigned by the Treasurer **or** the Chairperson. The Authority, by resolution, may designate any of **its** members or any officer or employee of the Authority to affix **the** signatures **of** the Executive Director, Chairperson and Treasurer to any check or draft for payment of any salaries or wages, and **for** payment of any other obligation of not more than twenty-five hundred dollars ($2,500.00).



**Section 7. Financing Resolutions**. Whenever the Authority shall adopt a bond resolution or other resolutions authorizing a financing transaction, the Executive Director, the Treasurer and any officer **or** employee designated by the Executive Director, shall then be authorized to execute all documents and make all elections as may be necessary or appropriate to effectuate the intent of the Authority to complete **or** administer the transaction approved by such resolution.

**Section** 8. **Transactions Under Prior Documents**. The Executive Director, the Treasurer, and any officer or employee designated by the Executive Director, is authorized to **execute all** documents and make all elections as may **be** necessary **or** appropriate to administer transactions undertaken or approved by any Predecessor Authority, as defined in Section 845-75 of the Act.

## ARTICLE VII

## INDEMNIFICATION

**Section 1. General**. The Authority shall indemnify any person who was or is a party or is threatened to be made a party to any threatened, pending or completed action, suit or proceeding, whether civil, criminal, administrative or investigative (other than an action by or in the right of the Authority) by reason **of** the fact that the person is or was a member, officer **or** employee of the Authority, against expenses **(**including attorneys' fees) judgments, fines and amounts paid in settlement actually and reasonably incurred by the person in connection with such action, suit or proceeding if the person acted in good faith and in a manner the person reasonably believed to be in or not opposed to the best interests of the Authority, and, with respect to any criminal action or proceeding, had no reasonable **cause** to believe his or her conduct was unlawful. The termination of any action, **suit** or proceeding by judgment, order, settlement, conviction, or upon a plea of nolo contendere **or its** equivalent, shall not, **of** itself, create **a** presumption that the person did not act in good faith and in a manner which the person reasonably believed to be in or not opposed to the best interests of the Authority, and, with respect to any criminal action or proceeding, had reasonable cause to believe that his or her conduct was unlawful.

**Section** 2. **Derivative Claims**. The Authority shall indemnify any person who was or is a party or is threatened to be made a party to any threatened, pending or completed action **or** suit by or in the right of the Authority to procure a judgment in its favor by reason of **the** fact that **the** person is **or** was a member, **officer or** employee of the Authority, against expenses (including attorneys fees) actually and reasonably incurred by the person in connection with the defense **or** settlement **of suit if** the person acted in good faith and in a manner the person' reasonably believed to be in or not opposed to the best interests of the Authority, and except that no indemnification shall be made in respect **of** any claim, issue **or matter as** to which such person shall have been adjudged to **be** liable for negligence **or** misconduct **in** the performance of his **or** her duty to the Authority unless and only to the extent that the Chancery Division, Circuit Court of Cook County, State of Illinois, or the court in which such action or suit was brought, shall determine upon application that, despite the adjudication of liability but in view of all the circumstances **of** the case, such person is fairly and reasonably entitled to indemnity for such expenses as the court shall deem proper.

**Section 3. Expenses**. To the extent that any person referred to in Sections 1 or 2 of this Article has been successful **on** the merits or otherwise in the defense of any action, suit or proceeding referred to therein **or** in the defense of any claim, **issue** or matter therein, he **or** she shall be indemnified against expenses (including attorneys' fees**)** actually and reasonably incurred by him or her in connection therewith.

**Section** 4. **Authorization for Indemnification**. Any indemnification under Sections 1 **or** 2 of this Article (unless ordered by a court**)** shall be made by the Authority only as authorized in a specific case upon a determination that indemnification of the member, officer **or** employee is proper in the circumstances because he or she has met the applicable standard **of** conduct set forth in Sections 1 **or 2 of** this Article. Such determination shall be made **(i**) by the members of the Authority by the affirmative vote of at least eight **(8**) members who were not parties to such action, suit or proceeding, or **(**ii) pursuant to the direction of the members, by independent legal counsel expressed in a written opinion.

**Section** 5. Advancement **of Funds for Expenses**. Expenses incurred in defending a civil or criminal action, suit or proceeding may be paid by the Authority in advance of the final disposition of such action, suit **or** proceeding upon delivery to the Authority of a written undertaking by or on behalf of the member, officer or employee to repay all amounts so advanced **if it** should be determined ultimately, as provided herein, that such person is not entitled to indemnification as provided in this Article.

Notwithstanding the foregoing, no advance shall be made by the Authority if a determination is reasonably and promptly made (i) by the members **of** the Authority by the affirmative vote of at least eight **(**8) members who were not parties to such action, suit or proceeding, or **(ii)** pursuant to the direction of the members, by independent legal counsel expressed in a written opinion, that, based on the facts known to the Board or independent counsel at the time such determination is made, such person acted in bad faith and in a manner that such person did not believe to be in or not opposed to the best interests of the Authority, or with respect to a criminal proceeding, that such person believed or had reasonable cause to believe his conduct was unlawful. In no event shall the Authority be required **to** advance any expenses to a person against whom the Authority brings a claim, in a proceeding, alleging that such person has breached his or her duty of loyalty to the Authority, committed an act or omission not in good faith or that involves intentional misconduct or a knowing violation of the law.

**Section 6. Non-exclusive**. The indemnification provided by this Article shall not be deemed exclusive **of** any other rights to which a person seeking indemnification may be entitled under any statute, by-law, agreement, vote of disinterested members or otherwise, both as to action in his **or** her official capacity and as to action in another capacity while holding such office, and shall continue as to a person who has ceased to be a member or officer and shall **inure** to the benefit **of** the heirs, executors and administrators of such a **person**.

**Section 7. Insurance.** The Authority shall have power **to** purchase and maintain insurance on behalf of any person who is or was a member, officer, employee or agent of the Authority, or **is or was** serving at the request of the Authority **as** a director, officer, employee or agent of another corporation, partnership**,** joint venture, **trust** or other enterprise, against any liability asserted against the person and incurred by the person in any such capacity, **or** arising out **of** the person's status as such, whether **or not** the Authority would have the power to indemnify the person against such liability under the provisions **of** this Article.

**ARTICLE VIII**

AMENDMENTS

These By-Laws may be amended by the affirmative vote of not less than eight (8) members of the

Authority at any meeting, provided ten **(**10) days written notice of the proposed amendment has been



given to all members. Such notice may, however, be waived if all members are present and if unanimous

consent is given to the adoption **of** the amendment

**Section 3.** Enactment This resolution shall take effect immediately. If any section, paragraph or

provision of this resolution shall be held to be invalid or unenforceable for any reason, the invalidity **or**

unenforceability of such section, paragraph or provision shall not affect any of the remaining provisions of this

resolution.

Adopted this 10th day of July, 2007, by roll call vote
as follows:

Ayes: 11

Nays: 0

**1040118** 6

Abstain: **0**

Absent: **3**

Vacancies**:** 1

Assistant Secretary

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**EXHIBIT** C

**[FOLLOWS ON THE NEXT PAGE]**

IF
A

ILLINOIS FINANCE
AUTHORITY

Governor, Rod R.
Blagojevich

Executive Director, **Kym** M.
Hubbard

November 9, 2007

**180 North** Stetson Ave.

Sulte **2655**

Chicago, IL
60601

312-651-1300

312-651-1350 **fax** www.ll-fa.com

**PUBLIC NOTICE** OF MEETING

The Illinois Finance Authority (the "IFA") will hold its monthly meeting on Tuesday, November 13, 2007. The Committee of the Whole of the IFA will meet first at 8:30 a.m. at the Illinois Finance Authority, 180 N. Stetson Street, Suite 2555, Chicago, Illinois. The IFA Board Meeting will then commence at 11:30 a.m. at the Mid America Club, 200 E. Randolph Drive, 80th floor, Chicago, Illinois,

All meetings will be accessible to handicapped individuals in compliance with Executive Order #5 (1979) and pertinent State and Federal laws upon notification of anticipated attendance. Handicapped persons planning to attend and needing special accommodations should contact, either by telephone or letter, Carla B. Burgess Jones, Illinois Finance Authority, Two Prudential Plaza, 180 North Stetson Avenue, Suite 2555, Chicago, Illinois 60601 or at (312) 651- 1318, TTY (800) 526-0844, Voice (800) 526-0857.

The agenda for the above-referenced meeting is attached to this notice.

This notice is issued pursuant to Section 2.02 of the Illinois Open Meetings Act.

By:

For David C. Gustman, Chairman

arla

t

Carla B. Burgess Jones

Secretary

Mt. Vernon | 2929 Broadway Street, Sie. 78, MI. **Vernon** IL 62864 | 618,244.2424 | 618,244.2433 Fax
Peoria | 124 **5.** W. **Adams** St., Ste. 300, Peoria, IL 61602 | 309.495,5959 | 309.678.7534 fax **Springfield**
427 E. Monroe St., Ste. 202, ***Springfield,*** IL 02701 | 217,782.6792 | 217.782.3989 ***fəx***
TTY: 1.800.626,0844 | VOICE: 1.800.526.0867

**EXHIBIT D**

**[FOLLOWS ON THE NEXT PAGE]**

**RESOLUTION NUMBER 2008-01-14**

**AN AMENDATORY BOND RESOLUTION APPROVING**
**THE ISSUANCE OF**
**ILLINOIS FINANCE AUTHORITY**
**501(c)(3) BONDS (NORTH SHORE ARENA, LLC)**
**IN AN AGGREGATE PRINCIPAL AMOUNT UP TO $10,000,000.**
**(Amended and Restated)**

RESOLUTION OF THE **ILLINOIS** FINANCE AUTHORITY, A BODY **POLITIC** AND CORPORATE OF THE **STATE** OF ILLINOIS (THE "ISSUER"), PROVIDING FOR THE ISSUANCE OF NOT **TO** EXCEED **$10** MILLION IN **AGGREGATE** PRINCIPAL AMOUNT OF ITS **SPORTS** FACILITY REVENUE BONDS, SERIES 2008 (NORTH SHORE ICE ARENA PROJECT) (THE "BONDS"), THE

PROCEEDS OF WHICH ARE TO BE LOANED TO NORTH SHORE ICE ARENA, LLC, AN ILLINOIS LIMITED LIABILITY COMPANY (THE "BORROWER"), FOR THE PURPOSE OF PAYING FOR, OR REIMBURSING THE BORROWER OR WILMETTE HOCKEY ASSOCIATION, INC., AN ILLINOIS NOT FOR PROFIT CORPORATION (THE "GUARANTOR") FOR, CERTAIN COSTS OF ACQUIRING, CONSTRUCTING, REMODELING, RENOVATING AND EQUIPPING CERTAIN PROJECTS WHICH SHALL CONSTITUTE AN "INDUSTRIAL PROJECT" UNDER THE ACT, AS DESCRIBED HEREIN, ESTABLISHING A DEBT SERVICE RESERVE FUND FOR THE BONDS, PAYING A PORTION OF THE INTEREST ACCRUING ON THE BONDS DURING THE PERIOD OF CONSTRUCTION OF THE PROJECT, AND PAYING CERTAIN EXPENSES INCURRED IN CONNECTION WITH THE ISSUANCE OF THE BONDS, WHICH BONDS WILL BE PAYABLE FROM LOAN PAYMENTS AND OTHER AMOUNTS DESCRIBED IN THE HEREIN DESCRIBED TRUST INDENTURE; AUTHORIZING THE EXECUTION OF THE LOAN AGREEMENT AND TRUST INDENTURE IN CONNECTION WITH THE SALE OF THE BONDS; AUTHORIZING THE DISTRIBUTION OF A LIMITED OFFERING MEMORANDUM; AND SETTING FORTH THE TERMS AND CONDITIONS UPON WHICH THE BONDS ARE TO BE ISSUED AND PROVIDING FOR OTHER MATTERS CONSISTENT WITH THE ISSUANCE, SALE AND DELIVERY OF THE BONDS.

**WHEREAS, the** Illinois Finance Authority **(the "**Issuer") is a political subdivision, body politic and corporate of the State of Illinois created under and pursuant to **the** Illinois Finance Authority Act, 20 **ILCS 3501/801-1** et **seq.,** as amended (the "Act**");** and

**WHEREAS,** pursuant to **the** provisions of **the** Act**, the** Issuer is authorized and empowered to **issue** its revenue bonds to finance the acquisition**,** construction**,** refurbishment, creation, development or redevelopment of **"**industrial projects**" within** the meaning of the Act and lend the proceeds thereof **to** any person **or** institution; and

**WHEREAS, to** promote a public purpose and to accomplish the purposes of the Act, **the** Issuer has agreed **with** North Shore **Ice** Arena, LLC, an Illinois limited liability company **(the "Borrower"),** and **Wilmette** Hockey Association, Inc.**,** an Illinois not for profit corporation (the "Guarantor"); to (i) **pay** *for*, or reimburse **the** Borrower or the Guarantor for, certain costs of



acquiring, constructing, remodeling, **renovating** and equipping facilities of the Borrower to be located in the Village of Northbrook, Illinois, Cook County, **Illinois;** (ii) finance capitalized interest on the Bonds**;** (iii) establish a Debt **Service** Reserve Fund; and **(iv)** pay certain expenses incurred in connection with the issuance **of the** Bonds (the "Project"**)**; and

**WHEREAS, the** Project is **an** "industrial project" within **the** meaning of **the** Act and will be of the character and **will** accomplish the purposes provided in the Act; and

**WHEREAS**, **the** Issuer wishes to provide for the financing of the Project by **the sale** and

issuance of its Sports Facility Revenue Bonds (North Shore Ice Arena Project), Series 2008 (the "Bonds"), in an aggregate principal amount not to exceed $10,000,000 pursuant to and in accordance with the Act and this Resolution authorizing the Bonds; and

**WHEREAS,** the Bonds and the obligation to pay interest thereon are special, limited obligations of the Issuer, payable solely out of the revenues and income derived from the Loan Agreement hereinafter referred to and as otherwise provided in the Trust Indenture hereinafter referred to and the Loan Agreement; the Bonds and the obligation to pay interest thereon shall not be deemed to constitute an indebtedness or an obligation of the Issuer, the State of Illinois or any political subdivision thereof within the purview of any constitutional limitation or provision or a charge against the general credit or taxing powers, if any, of any of them; and neither the Underwriter hereinafter referred to nor any future holder of the Bonds shall have the right to compel any exercise of the taxing power, if any, of the Issuer, the State of Illinois or any political subdivision thereof to pay any principal installment of or interest on the Bonds; and

**WHEREAS,** pursuant to the provisions of Section 147(f) of the Internal Revenue Code of 1986, as amended, a public hearing on the proposed plan of financing of the Project and the issuance of the Tax Exempt Bonds was held by the Interim Executive Director of the Authority or his designee, on September 28, 2007, pursuant to a notice published at least fourteen (14) days prior to such public hearing in The *State* Journal-*Register*, a newspaper qualified by law to publish legal notices in the City of Springfield, in Sangamon County, Illinois, and in The *Daily Herald,* a newspaper qualified by law to publish legal notices in the Village of Northbrook, Illinois, Cook County, Illinois, on September 21, 2007; and

**WHEREAS,** the Issuer proposes to execute and deliver a Loan Agreement (the "Loan Agreement") among the Issuer, the Guarantor and the Borrower, pursuant to which the proceeds from the sale of the Bonds will be used by the Issuer to make a loan to the Borrower for the purpose of financing a portion of the cost of the Project, and the Borrower will covenant and agree to make payments sufficient to provide for the payment of the principal of, interest on and other amounts payable on the Bonds, as and when the same become due and payable; and

**WHEREAS,** in order to provide security for the obligations under the Loan Agreement, the Borrower will grant a mortgage and security interest in the real property and all improvements thereon (including the building to be constructed) constituting the Project pursuant to terms of one or more mortgage and security agreements (the "Mortgage") by the Borrower in favor of the Trustee (as defined below); and

**WHEREAS,** the Bonds will be **issued** under and pursuant to, and are to be secured by a Trust Indenture (**the** "Indenture"), between **the** Issuer and Amalgamated Bank of Chicago, as trustee **(the** "Trustee"**);** and

**WHEREAS,** the Borrower **has** requested **the** Issuer to enter into a Bond Purchase Agreement **(the** "Bond Purchase Agreement") with **the** Borrower and Oppenheimer & Co. Inc., as the **Underwriter with** respect to the initial sale of the Bonds (the "Underwriter"**);** and

**WHEREAS, the** Borrower **has** requested **that the** Bonds **be** issued pursuant **to the** Indenture, under **which** the Issuer **will** pledge, among other **things,** the income and revenues received under **the** Loan Agreement as security for the Bonds**; and**

**WHEREAS, a** Limited Offering Memorandum relating to the Bonds **in** substantially the form of a Preliminary **Limited Offering** Memorandum (**the** "Limited Offering Memorandum**")** delivered **to the Issuer** and distributed **in** connection with the **Bonds will** be distributed in connection **with the** marketing of the Bonds; and

**WHEREAS,** copies of the **forms** of the following documents relating to the transactions **described** above have been filed **with** the Issuer:

**(a)**

**(b)**

**(c)**

(d

)

the Indenture**,** with a copy of the form of the Bonds attached thereto as an Exhibit; the Loan Agreement**;**

the Bond Purchase Agreement; and

Limited Offering Memorandum.

**WHEREAS,** it appears that each of the instruments above referred to**, which** are now before **this** meeting, **is in appropriate** form and **each** instrument **referred** to above **is** an appropriate instrument to be executed and delivered **by the** Issuer for the purpose intended;

**NOW, THEREFORE**, **BE** IT RESOLVED **by the** members **of the** Illinois Finance Authority, **as follows:**

**Section** 1. Pursuant to the Act, **the** Issuer does hereby authorize **the** financing **of** a portion of the cost of **the** Project **in** accordance **with** the terms of **the Loan** Agreement and the Indenture and does **hereby** determine it is in furtherance of the public purposes set forth in the Act, and that, therefore**,** providing for **the** financing **of the** Project through **the** issuance and sale of the

Bonds is in the public interest.

Section 2. For the purpose of financing a portion of the cost of the Project, the issuance of revenue bonds of the Issuer to be known as the "Sports Facility Revenue Bonds (North Shore Ice Arena Project), Series 2008", in an aggregate principal amount not to exceed $10,000,000 is hereby authorized. The Borrower has agreed that to the extent bond proceeds are not sufficient to pay all of the costs of financing the Project, the Borrower will pay all such excess costs in order to complete the financing of the Project. Any such payments made by the Borrower shall in no manner affect or reduce the payments required by the Loan Agreement hereinafter authorized and approved.



Section 3. The Bonds shall be issued in such form and denominations as are set forth in the Indenture and the interest on the Bonds will be payable on the dates and at such places as are specified in or determined pursuant to the Indenture, but the Bonds shall mature not later than 40 years from the date of issuance. The Bonds shall have an original issue date, shall mature, shall be subject to redemption and shall bear interest as provided in the Indenture. The Bonds shall initially bear interest at the rates as determined by the Underwriter pursuant to and in accordance with the Indenture. The Bonds shall be dated and numbered as provided in the Indenture. The forms of the Bonds and the provisions for execution, authentication, payment and registration shall be substantially as set forth in the Indenture.

Section 4. The Bonds shall be special, limited obligations of the Issuer and, except to the extent payable from Bond proceeds or moneys from the investment thereof, shall be payable solely from the revenues and receipts and other amounts received by or on behalf of the Issuer pursuant to the Loan Agreement, from certain funds pledged under the Indenture. The Bonds will also be secured by the Mortgage. The Bonds and interest thereon shall not be deemed to constitute an indebtedness or an obligation of the Issuer, the State of Illinois or any political subdivision thereof within the purview of any constitutional limitation or statutory provision or a charge against the general credit or taxing powers, if any, of any

of them. No taxing powers, if any, of the Issuer, the State of Illinois or any political subdivision thereof are available to pay the Bonds or interest thereon. The special, limited nature of the obligation represented by the Bonds is more fully set forth in the Indenture.

**Section 5.** The payments under the Loan Agreement to be received by the Issuer under the terms of the Loan Agreement, as represented by the Borrower, are calculated to be sufficient to pay the principal of and premium, if any, and interest on the Bonds as the same become due and payable, and all of such payments shall be pledged for that purpose pursuant to, and in addition to such other purposes as are more fully set forth and provided for in, the Indenture.

**Section 6.** The execution, delivery and performance of the Indenture, the Loan Agreement and the Bond Purchase Agreement by the Issuer, are hereby authorized. The Indenture, the Loan Agreement and the Bond Purchase Agreement shall be in substantially the forms submitted to this meeting as hereinabove recited, with such changes, insertions or omissions as may be approved by the Chairman, Vice Chairman, Treasurer or Executive Director of the Issuer, whose approval thereof shall be evidenced by his execution of each such instrument.

**Section 7.** The offering of the Bonds by the Underwriter pursuant to the Bond Purchase Agreement is hereby authorized and approved. The selling of the Bonds by the Underwriter at the price of not less than 97% of the principal amount of the Bonds is hereby approved. The execution, delivery and performance of the Bond Purchase Agreement shall be in substantially the form submitted to this meeting as hereinabove recited, with such changes, insertions or omissions as may be approved by the Chairman, Vice Chairman, Treasurer or Executive Director of the Issuer (or any person duly qualified and appointed by the Members to serve in such office on an interim basis), whose approval thereof shall be conclusively evidenced by his execution of the Bond Purchase Agreement.

Section 8. The Issuer does hereby authorize and approve the distribution of a Preliminary Limited Offering Memorandum and a Limited Offering Memorandum relating to the Bonds by the Underwriter to be approved by the officer executing the Bond Purchase Agreement, but subject to the limitations and representations with respect thereto made by the Issuer as set forth herein.

Section 9. The execution and delivery of the Bonds to the Trustee, for authentication, acceptance and redelivery of the authenticated Bonds, and the delivery of the Bonds to the purchasers thereof or their duly authorized attorneys-in-fact, against receipt by the Trustee of the amount of the purchase price for the Bonds in payment therefor, together with the payment of certain expenses in connection with the issuance of the Bonds, are hereby authorized.

Section 10. The Chairman, Vice Chairman, Treasurer or Executive Director of the Issuer (or any person duly qualified and appointed by the Members to serve in such office on an interim basis) is hereby authorized to execute on behalf of the Issuer the Indenture, the Loan Agreement, the Bond Purchase Agreement and the Bonds, and the Secretary or Assistant Secretary of the Issuer is hereby authorized to attest such documents, and the Chairman, Vice Chairman, Treasurer or Executive Director (or any person duly qualified and appointed by the Members to serve in such office on an interim basis) and the Secretary or Assistant Secretary are hereby authorized to deliver such instruments and documents on behalf of the Issuer and to execute and deliver all such instruments, documents or certificates, and to do and perform all such things and acts, as each shall deem necessary or appropriate in furtherance of the issuance of the Bonds and the carrying out of the transactions authorized by this Resolution or contemplated by the instruments referred to in this Resolution. The Bonds shall be executed on behalf of the Issuer by its Chairman, Vice Chairman, Treasurer or Executive Director (or any person duly qualified and appointed by the Members to serve in such office on an interim basis) with his/her manual or facsimile signature and attested by the manual or facsimile signature of the Secretary or Assistant Secretary. In case any official whose signature appears on any Bond shall cease to be such official before the delivery of such Bond, such

signature shall nevertheless be valid and sufficient for all purposes, the same as if he or she had remained in office until delivery.

**Section 11.** The Indenture, the Loan Agreement, the Bond Purchase Agreement, the Limited Offering Memorandum, as approved or acknowledged by this Resolution, all of which are hereby incorporated in this Resolution by reference thereto, shall be placed on file at the office of the Issuer and made available for public inspection by any interested party immediately following the passage and approval of this Resolution.

**Section 12.** The Chairman, Vice Chairman, Treasurer or Executive Director (or any person duly qualified and appointed by the Members to serve in such office on an interim basis) and the Secretary or Assistant Secretary are hereby authorized to take all actions and execute all additional documents, including, without limitation, an IRS Form 8038 (with respect to the Tax Exempt Bonds) and a Blanket Issuer Letter of Representations with The Depository Trust Company ("DTC"), as are reasonably necessary and appropriate to the issuance of the Bonds. The Trustee is authorized to file a UCC Financing Statement and amendments and continuations thereof naming the Issuer as Debtor and evidencing the grant of the security interest in favor of the Trustee pursuant to the Indenture.



Frai****#**

**Section 13.** The appointment of Amalgamated Bank of Chicago, as the Trustee under the Indenture and Oppenheimer & Co. Inc., as the underwriter under the Bond Purchase Agreement, are hereby approved.

**Section 14.** The Bonds may be initially issued in book-entry form and registered in the name of DTC, or its nominee, as securities depository.

**Section 15.** If any section, paragraph, clause or provision of this Resolution shall be ruled by any court of competent jurisdiction to be invalid, the invalidity of such section, paragraph, clause or provision shall not affect any of the remaining sections, paragraphs, clauses or provisions hereof.

**Section 16.** All acts of officials of the Issuer which are in conformity with the purposes and intent of this Resolution and in furtherance of the issuance and sale of the Bonds and the financing of the Project shall be, and the same are, in all respects approved, ratified and confirmed. All resolutions and orders, or parts thereof, in conflict with the provisions of this Resolution, including Resolution No. 2007-11-08, adopted by the Issuer on November 13, 2007, are, to the extent of such conflict, hereby repealed and superseded.

**Section 17.** This Resolution shall become effective immediately upon its adoption.

SBDS02 ABF
363128v3

Approved and effective **this 15th day** of January 2008 **by** roll call vote as follows:

AYES: **10**

**NAYS: 0**

ABSTAIN: **0**

AUTHOR

ABSENT: **5**

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ILLINOIS FINANCE AUTHORITY

**By**:

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Chairman

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**Secretar**
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**SBDS02 ABF**
**363128v3**

**EXHIBIT E**

**[FOLLOWS ON THE NEXT PAGE]**

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ILLINOIS FINANCE AUTHORITY

Governor, Rod R. Blagojevich
Executive Director, Kym M. Hubbard

January **11**,
2008

180 **North** Stetson Ave.
Suite 2555
Chicago, IL 60601
**312-661-1300**
312-651-1350 **fax**
www.il-fa.com

**PUBLIC NOTICE** OF **MEETING**

The Illinois Finance Authority (**the "**IFA") **will** hold its **monthly** meeting on Tuesday, **January** 15, 2008. The Committee of the Whole **of the** IFA will **meet** first at 8:30 a.m. at **the** Illinois Finance Authority, **180** N. Stetson Street, Suite 2555, Chicago, Illinois. The IFA Board Meeting will then commence at 11:30 **a.m.** at the Mid America Club, 200 E. Randolph Drive, **80th** floor, Chicago, Illinois.

All meetings will **be** accessible to handicapped individuals **in** compliance with Executive Order **#5 (1979) and** pertinent **State** and Federal laws upon notification of anticipated attendance. Handicapped persons planning to attend and needing special accommodations **should** contact, either by telephone or letter, **Carla** B. **Burgess** Jones, Illinois Finance Authority, Two Prudential Plaza, 180 North Stetson Avenue, **Suite 2555**, Chicago, Illinois 60601 **or at** (312**)** 651- 1318, TTY (**800)** 526-0844, Voice (**800**) 526-0857.

The agenda **for** the above-referenced meeting is attached to this notice.

This **notice** is **issued pursuant to** Section 2.02 of the Illinois Open Meetings Act.

By:

For William A. Brandt, **Jr.** Chairman

Carla B. Burgess Jones
Secretary

Mt. Vernon | 2929 **Broadway** Street**, Ste**. 78, Mt. Vernon IL 62864 | 618.244.2424 618.244.2433 fax Peoria | 124 S. W. Adams **St.,** Ste. 300**,** Peoria, IL 61602 | 300.495,5959 | 309.676.7534 fax Springfield | 427 E. Monroe St., Ste. 202, Springfield, IL 62701 | 217.782.5792 | 217,782,3989 fax TTY: 1.800.526.0844 | **VOICE:** 1.800.526,0867

**EXHIBIT F**

**[FOLLOWS ON THE NEXT PAGE]**

IFA

ILLINOIS FINANCE AUTHORITY

**EXHIBIT**

**SCHEDULE OF INCUMBENCY**

A complete list of the members of the governing board of the Illinois Finance Authority is provided below:

| Name | Position | Term Began | Term Expires |
|---|---|---|---|
| William A. Brandt, Jr. | Chair | January 1, 2008 | January 1, 2010 |
| | Member | January 1, 2008 | July 19, 2010 |
| Michael W. Goetz | Member and Vice Chair | December 31, 2003 | July 21, 2008 |
| Dr. William Barclay | Member | June 12, 2007 | July 21, 2008 |
| Magda M. Boyles | Member | June 24, 2005 | July 17, 2009 |
| Ronald E. DeNard | Member | September 1, 2005 | July 16, 2009 |
| James J. Fuentes | Member | April 5, 2005 | July 17, 2009 |
| Dr. Roger D. Herrin | Member | July 5, 2004 | |
| Edward H. Leonard, Sr. | Member | | |

December **31**, 2003

Terrence M. O'Brien

Member

Andrew W. Rice

Member

March 29, 2004

December 31, 2003

July 16, 2007* July 17, 2009 July 21, 2008

Juan B. Rivera

Member

August 12, 2005

Lynn Talbott

Member

November 7, 2005

Joseph P. Valenti

Member

April D. Verrett

Member

Bradley A. **Zeller**

Member

December 31, 2003

September 20, 2007

February 25, 2005

July 16, 2007* July 21, 2008 July 16, 2009 July 16, 2007*

July 21, 2008

July 17, 2009

* Pursuant to Section 801-15 of the Illinois Finance Authority Act, a member **shall** serve until his or her successor **shall** be duly appointed and qualified.

A complete list of the officers of **the** Illinois Finance Authority is provided below:

**OFFICERS OF THE ILLINOIS FINANCE AUTHORITY**

Title

Chair

Vice Chair

Executive Director

Interim Treasurer

Secretary

Assistant
Secretary

1070911 1

**Name**

William A. Brandt, Jr.

Michael W. Goetz

Kym M. Hubbard

Ximena Granda

Carla B. Burgess Jones

**J.** Stuart Boldry, Jr.

**Signature**
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Carla B Paray

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State of **Illinois**

**Executive**
Department

UNITED STATES OF AMERICA

STATE OF ILLINOIS



**CERTIFICATE OF INCUMBENCY**

I, JESSE WHITE, Secretary of State of the State of Illinois, certify that

William A. Brandt, Jr.

has been since January 1, 2008 and is now a Member of the Illinois Finance Authority in the State of Illinois duly qualified to that office and that full faith and credit are due the official attestations.

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IN TESTIMONY WHEREOF, I hereto

set my hand and cause to be

affixed the Great Seal of the

State of Illinois. Done at

the City of Springfield,

January 7, 2008.

Elese White

SECRETARY OF STATE

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State of Illinois

Executive

Department

UNITED STATES OF AMERICA

STATE OF ILLINOIS

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CERTIFICATE OF INCUMBENCY

1, JESSE WHITE, Secretary of State of the State of Illinois, certify that

William Barclay

has been since June 12, 2007 and is now a Member of the Illinois Finance Authority in the State of Illinois duly qualified to that office. and that full faith and credit are due the official attestations.

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IN TESTIMONY WHEREOF, I hereto set my hand and cause to be

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UNITED STATES OF AMERICA

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CERTIFICATE OF INCUMBENCY

I, JESSE WHITE, Secretary of State of the State of Illinois,

certify that

Magda M. Boyles

has been since June 24, 2005 and is now a Member of the Illinois Finance Authority in the State of Illinois duly qualified to that office and that full faith and credit are due the official attestations.

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IN TESTIMONY WHEREOF, I hereto set my hand and cause to be affixed the Great Seal of the

State of Illinois. Done at

the City of Springfield,

January 7, 2008.

Reese White

SECRETARY OF STATE

State of Illinois

Executive Department

UNITED STATES OF AMERICA

STATE OF ILLINOIS

SS

**CERTIFICATE OF INCUMBENCY**

JESSE WHITE, Secretary of State of the State of Illinois, certify that

**Ron DeNard**

has been since September 1, 2005 and is now a Member of the Illinois Finance Authority in the State of Illinois duly qualified to that office and that full faith and credit are due the official attestations.

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Olese White

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UNITED STATES OF AMERICA

STATE OF ILLINOIS
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CERTIFICATE OF INCUMBENCY

I, JESSE WHITE, Secretary of State of the State of Illinois, certify that

James J. Fuentes

has been since April 5, 2005 and is now a Member of the Illinois Finance Authority in the State of Illinois duly qualified to that office and

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IN TESTIMONY WHEREOF, I hereto set my hand and **cause** to be affixed the Great Seal of the State of Illinois. Done at the City of Springfield, January **7**, 2008.

Elece White

SECRETARY **OF** STATE

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**State** of Illinois
Executive
Department

UNITED STATES **OF** AMERICA

STATE OF ILLINOIS
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CERTIFICATE **OF INCUMBENCY**

**I,** JESSE WHITE, Secretary of State of the **State of** Illinois, certify that

Michael Goetz

has been since December 31, 2003 and is now a Member of the Illinois Finance Authority in the State of Illinois duly qualified to that office and that full faith and credit are due the official attestations.

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the City of Springfield,

January 7, 2008.

Jesse White

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SECRETARY OF STATE

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SS
STATE OF ILLINOIS

**CERTIFICATE OF INCUMBENCY**

I, JESSE WHITE, Secretary of State of the State of Illinois, certify that

Roger D. Herrin

has been since July 5, 2004 and is now a Member of the Illinois Finance Authority in the State of Illinois duly qualified to that office

full 'faith and credit are due the official and that attestations.

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IN TESTIMONY WHEREOF, I hereto set my hand and cause to be affixed the Great Seal of the State of Illinois. Done at the City of Springfield, January 7, 2008.

Blese White

SECRETARY OF STATE

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State of Illinois
Executive Department

UNITED STATES OF AMERICA

STATE OF ILLINOIS

SS

CERTIFICATE OF INCUMBENCY

JESSE WHITE, Secretary of State of the State of Illinois, certify that

Edward H. Leonard, Sr.

has been since December 31, 2003 and is now a Member of the Illinois Finance Authority in the State of Illinois duly qualified to that are due the

official office

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January 7, 2008.

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**CERTIFICATE OF INCUMBENCY**

**I,** JESSE WHITE, Secretary of State of the State of Illinois, certify that

Terrence M. O'Brien

has **been** since March **29, 2004** and is **now** a **Member** of **the Illinois Finance Authority** in the State of Illinois duly qualified to that office **and** that **full** faith **and** credit are due the official attestations.

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IN TESTIMONY WHEREOF, I hereto set my hand and cause to be affixed the Great Seal of the State of Illinois. Done at the City of Springfield, January 7, 2008.

Zeese White

SECRETARY OF STATE

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**State** of **Illinois**

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UNITED STATES **OF** AMERICA

STATE OF ILLINOIS

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**CERTIFICATE OF** INCUMBENCY

**I,** JESSE WHITE, Secretary of State **of** the State **of** Illinois,

certify that

**Andrew** W. **Rice**

has been since **December 31, 2003** and **is** now A **Member of the** Illinois **Finance Authority** in the State of Illinois duly qualified to that

office and that full faith and credit are due the official attestations.

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IN TESTIMONY **WHEREOF,** I hereto set my hand **and** cause to **be** affixed the Great Seal of the State **of** Illinois. Done at **the** City of Springfield, January **7, 2008.**

Becce White

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UNITED STATES OF AMERICA

STATE **OF** ILLINOIS

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CERTIFICATE **OF INCUMBENCY**

I, JESSE WHITE, Secretary of State of the State of Illinois, certify that

Juan B. **Rivera**

has been since **August 12, 2005** and **is** now A Member **of the** Illinois Finance **Authority** in the State of Illinois duly qualified to that **office and** that full **faith** and credit are **due** the official attestations.

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IN TESTIMONY WHEREOF, I hereto set my hand and cause **to** be **affixed** the Great Seal of the State of Illinois. Done at the City of Springfield, **January 7, 2008.**

Jesse White

SECRETARY **OF** STATE

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State of **Illinois**

Executive

Department

UNITED STATES OF AMERICA

STATE OF ILLINOIS

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**CERTIFICATE OF INCUMBENCY**

I, JESSE WHITE, Secretary of State of the State of Illinois, certify that

**Lynn F. Talbott**

has been since November 7, 2005 and is now a Member of the Illinois Finance Authority in the State of Illinois duly qualified to that office and that full faith and credit are due the official attestations.

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IN TESTIMONY WHEREOF, I hereto set my hand and cause to be affixed the Great Seal of the State of Illinois. Done at the City of Springfield, January 7, 2008.

Reese White

SECRETARY OF STATE

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Executive Department

UNITED STATES OF AMERICA

STATE OF ILLINOIS } SS

CERTIFICATE OF INCUMBENCY

I, JESSE WHITE, Secretary of State of the State of Illinois, certify that

Joseph P. Valenti

has been since December 31, 2003 and is now a Member of the Illinois Finance Authority in the State of Illinois duly qualified to that

office and that full faith and credit are due the official

attestations.

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the City of Springfield,

January 7, 2008.

Blese White

SECRETARY OF STATE

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Executive Department

UNITED STATES OF AMERICA

STATE OF ILLINOIS

SS

**CERTIFICATE** OF INCUMBENCY

I, JESSE WHITE, Secretary of State of the State of Illinois, certify that

April D. Verrett

has been **since September 20, 2007** and is now a **Member of the Illinois Finance Authority** in the State of Illinois duly qualified to that **office and** that full faith and credit are **due** the official attestations.

OF **THE**

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IN TESTIMONY WHEREOF, I hereto

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**State** of Illinois. Done at

the City of
Springfield,

January **7, 2008.**

Blese White

SECRETARY OF STATE

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**Executive**
Department

UNITED STATES OF AMERICA

**STATE** OF ILLINOIS

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CERTIFICATE OF INCUMBENCY

I, JESSE WHITE, Secretary of State of the State of Illinois,

certify that

Bradley A. Zeller

has been since February 25, 2005 and is now a Member of the Illinois Finance Authority in the State of Illinois duly qualified to that office and credit and that full faith attestations. are due the official

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IN TESTIMONY WHEREOF, I hereto

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State of Illinois. Done at

the City of Springfield;

**January 7, 2008 .**

Freee White

SECRETARY OF STATE

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**EXHIBIT G**

**[FOLLOWS ON THE NEXT PAGE]**

CERTIFICATE OF SIGNATURE

under the

UNIFORM **FACSIMILE** SIGNATURE OF PUBLIC OFFICIALS

ACT (30 ILCS 320/2)

1

.

William A. Brandt, Jr.

I am an "Authorized Official" **of the Illinois Finance** Authority.

certify that

**within the** meaning **of** the provisions **of** Section 1 **[c]** of the Uniform Pacsimile Signature of Public Officials Act and that my signature is required or permitted on a **public** security or instrument **of** pay- mant as defined in said Act. **That** I am filing my signature with the Secretary **of** State, certified under oath, so as **to** permit **the** use of a facsimile thereof upon a public security or instrument **of** payment requiring or permitting my signature as provided under **the** Uniform Facsimile Signature **of** Public Officials Act.

1

.

William A. Brandt, **Jr.**

oath, that the following **is** my manual signature!

Subscribed and **sworn to** before me this

OFFICIAL SEAL

BETHANY **J. DAVIES**

NOTARY PUBLIC, STATE OF ILLINOIS MY COMMISSION EXPIRES 6-6-2011

Willesen

**certify**
under

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of

**Signature of** William A. **Brandt,**

7th

day of

•January

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2008

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Complete **and** return **to**: Secretary of State
Index Department
**111** East Monroe Street Springfield, Illinois 82756
**(**217) 782-7017

#37.9

**EXHIBIT** H

**[FOLLOWS ON THE NEXT PAGE]**

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## CERTIFICATE OF PUBLICATION

**Paddock Publications, Inc.**

# Daily Herald

Corporation organized and existing under and by virtue of the laws of the State of Illinois, DOES HEREBY CERTIFY that it is the publisher of the DAILY HERALD. That said DAILY HERALD is a secular newspaper and has been circulated daily in the Village(s) of Algonquin, Antioch, Arlington Heights, Barrington, Barrington Hills, Lake Barrington, North Barrington, South Barrington, Bartlett, Batavia, Buffalo Grove, Burlington, Carpentersville, Cary, Deer Park, Des Plaines, South Elgin, East Dundee, Elburn, Elgin, Elk Grove Village, Fox Lake,Fox River Grove, Geneva, Gilberts, Grayslake, Gurnee, Hampshire, Hainesville, Hanover Park, Hawthorn Woods,Hoffman Estates, Huntley, Inverness, Island Lake,Kildeer, Lake Villa, Lake in the Hills, Lake Zurich, Libertyville, Lincolnshire, Lindenhurst, Long Grove, Mt. Prospect, Mundelein, Palatine, Prospect Heights, Rolling Meadows, Schaumburg, Sleepy Hollow, St. Charles, Streamwood, Tower Lakes, Vernon Hills, Volo, Wauconda, Wheeling, West Dundee, Wildwood, Green Oaks

County(ies) of

Cook, Kane, Lake, McHenry

and State of Illinois, continuously for more than one year prior to the date of the first publication of the notice hereinafter referred to and is of general circulation throughout said Village(s), County(ies) and State.

I further certify that the DAILY HERALD is a newspaper as defined in "an Act to revise the law in relation to notices" as amended in 1992 Illinois Compiled Statutes, Chapter 715, Act 5, Section 1 and 5. That a notice of which the annexed printed slip is a true copy, was published September 21, 2007

in said DAILY HERALD.

IN WITNESS WHEREOF, the undersigned, the said PADDOCK PUBLICATIONS, Inc., has caused this

certificate to be signed by, this authorized agent, at **Arlington Heights**, Illinois.

PADDOCK PUBLICATIONS, INC. DAILY HERALD **NEWSPAPERS**

BY

Holly Brutonick

Authorized Agent

Control # T3984398

Certificate of **Publication in** THE STATE JOURNAL-REGISTER by GateHouse **Media** Illinois **Holdings**, **Inc.**

**STATE OF ILLINOIS**

**COUNTY OF SANGAMON**

ss

**GATEHOUSE MEDIA ILLINOIS HOLDINGS, INC., DOES HEREBY CERTIFY:**

That it is a corporation duly organized and existing under the laws **of** the **State of** Illinois;

That it is the publisher of *The* ***State*** Journal-***Register***, a secular daily newspaper printed and published in the City of Springfield, in Sangamon County, Illinois, and of general **circulation in** said City, County and State; **and** that **it** is a newspaper as defined in "An Act to **revise the** law **in relation** to notices" - Illinois Compiled Statutes, Chapter 715 **Sections 1** and 5.

That a notice of **which** the annexed **is a** true copy has been regularly published in said newspaper one time;

that the first publication of said notice was on the twenty-first day of September, 2007, and the last publication thereof was on the twenty-first day of September, 2007,

That the face of type in which each publication of said notice was printed was the same as the body of type used in the classified advertising in the newspaper in which said publication was made;

That said *The State* Journal-*Register* has been regularly published in said City, County and State for at least one year Prior to publication of said notice.

In WITNESS WHEREOF, said GateHouse Media Illinois Holdings, Inc., publisher as aforesaid, has executed this Certificate of Publication by its Officer or Agent thereunto duly authorized this twenty-first day of September, 2007.

Printer's Fee $191.36

No. 07-1431

GATEHOUSE MEDIA ILLINOIS HOLDINGS, INC.

# 37 Susan Achmett

By

ITS VICE PRESIDENT

NOTICE OF PUBLIC HEARING

Notice is hereby, given that on September 28, 2007, at 19:00 A.M., in the offices of the Illinois Finance Authority| (the "Authority") at 427 East Montoe Street, Suite 202, Springfield, Illinois, a public hearing will be held before the Executive Director of the Authority, or, her designee, regarding a plan to issue not to exceed $10,000,000 ag- gregate principal amount of Sports Facility Revenue Bonds (North Shore Ice] Arena Project), of the Author- lity, in one or more series.(the ["Bonds"). The proceeds of the Bonds will be loaned to North Shore Ice Arena, LLC,| an Illinois limited liability company (the "Borrower"), in order to assist the Borrower in financing or refinancing all or a portion of the costs of the acquisition, construction, equipping, furnishing and improving by the Borrower of the projects described below, located or to be located on a five (5) acre more or less tract] of land located at southwest) corner of Founders Drive and Techny Road, in the Village of Northbrook, Illinois, Cook County, Illinois (the "Prop- jerty"). The sole member of the Borrower is Wilmette Hockey Association, Inc., an Illinois not-for-profit corpora- tion.

The projects consist of (i) ac- quiring, constructing, im- proving, equipping and fur- Inishing any recreational fa- cilities of the Borrower on the Property, including but not limited to: (a) construct- ing, furnishing and equipping| on the Property an approxi- mately 47,000 square foot indoor sports complex, which will include: an ap-1 proximately 200 foot by 85 foot wide ice skating rink; an approximately 5,500 square foot on-ice, training facility; concessions, meeting rooms, locker rooms, ing/rehabilitation

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facilities, offices to be used by person- nel, and adjacent space; (b) acquiring machinery, equip- ment and related property to be installed or used on or in connection with the Prop- erty; (c) undertaking generali construction and projects on the Property, including fire protection, utility infrastruc- ture, construction of and im- ,provements to roads, walk- (ways and parking lots, site improvements and landscap- ing; (ii) paying certain costs

**associated** with **the issuance**

**of the Bonde iii)** fundin g **a** debt **servi c** rve fund forj the Bon ds, (iv) fund ing]

certain capitalize d **interest**. **All** of the projects will be owned, operate d or manage d] by the Borrower.

The Bonds **do not** constitute] a **debt** of **the** Authority or off the State of **Illinois** within the meaning of any provisions of the Constitution or **statutes of** the State of mois **or** a pledge of the faith and credit] of the Authority **or** of the **State** of Illinois or grant to the owners thereof **any** right to have the Authority or the General Assembly levy **any** taxes or **appropriate any** funds for the payment of the principal thereof or interest thereon. The Bonds, will be payable solely **out of** the revenues **and other** funds pledged for their payment **in** accordance with the Inden- ture.

The above notice **of** public hearing **is** required **by** Sec- tion 147(**f)** of the **Internal**; Revenue Code of 1986, **as** amended. At the time and place set for **the** public hear- ing, residents**,** taxpayers and **other interested** persons will be given the opportunity **to** express their views for or against the proposed plan of financing. Written comments **may** also **be** submitted to the Executive Director of the **Au-:** thority at her office located at; 180 North Stetson **Avenue**, Suite 2555, Chicago, Illinois 60601, until September **27,** 2007.

**In** accordance with the :Americans with Disabilities [Act ("ADA"),; if **any** person with a

disability **(as** defined in **the** ADA) needs special| accommodations to partici- **pate** in the public hearing, then not later than September **27, 2007,** he **or she** should contact the: Authority at **(312) 651-1300**.

Notice dated: September 20, **2007**.

ILLINOIS FINANCE: AUTHORITY By /*s*/**Kym** M. Hubbard Executive Director!

- Illinois Finance Authority